

ORDER ON I.A.NOS.1 TO 3:

These three applications are filed by the objector by name Smt. Jayalakshamma under Order 21 Rule 97 of CPC and under Section 144 of CPC and under Section 151 of CPC.

I.A.No.1 is filed by her to treat her as objector and conduct enquiry regarding her right. I.A.No.2 is filed under Section 144 of CPC, to restore the possession and I.A.No.3 is filed to stop the Decree Holder from demolishing the structure standing in the suit property.

In the affidavit filed in support of the application, the objector stated that she is the wife of elder brother of Decree Holder. The petition schedule properties are allotted to her father in-law by BDA. The Decree Holder was permanent Government Employee and on his retirement, he made an application to BDA to execute the Sale Deed. At that time, he sought the consent of the Objector and Vasanthamma. Therefore, both of them gave consent to register the Sale Deed in the name of Decree Holder. Decree Holder assured that he will effect the partition after the Sale Deed was executed. The objector stated that she was residing in the portion of suit

Ex.2635/2023

property, for her legal and family necessity, during the lifetime of her husband the property was mortgaged in favour of Judgment Debtor for ₹3,00,000/-. The Decree Holder conceal the matter and filed O.S.7073/2018 and obtained Decree. The objector stated that she is residing in rented premises at Doddaladamara, Kengeri. The Decree Holder by using the force, by using the police and ameena of the court forcefully took the possession of portion of suit property. The suit property was also collapsed due to heavy rain. Therefore, she prays to allow the applications and direct the Decree Holder to restore the possession in her favour and direct the Decree Holder to stop the demolition of the structure. Hence, she prays to allow the application.

Advocate for Decree Holder has not filed objection, but he filed memo stating that the possession was obtained by him and hence he sought to close the execution petition in full satisfaction.

I heard the arguments of Advocate for objector and Advocate for Decree Holder.

The following points arise for my consideration:

Point No.1: Whether the enquiry is necessary regarding the title of objector?

Point No.2: What order?

My answers to the above points are as follows;

Point No.1: In negative.

Point No.2: As per final order for the following;

REASONS

Point No.1: The objector has filed xerox copies of three mortgage Deed, two are executed by her and one is executed by her husband Lakshminarayana in favour of the Judgment Debtor. All these mortgage deeds are produced by the Judgment Debtor in O.S.7073/2018. All these Mortgage Deeds are considered by my predecessor and observed that these are unregistered and insufficiently stamped documents.

In this case also, the objector has not produced any other documents to show that she has got right in the property. Since the same contentions urged by the Judgment Debtor is already decided in O.S.7073/2018, the separate enquiry under Order 21 Rule 97 of CPC is not necessary. No fresh material was brought by the objector to hold the enquiry. The possession is already obtained by the Decree Holder. Hence, **I answer point No.1 in negative.**

Ex.2635/2023

Point No.2: In view of my findings to the above points, I pass the following

ORDER

I.A.Nos.1 to 3 filed by the Objector are dismissed.

Memo filed by the Decree Holder on 07.01.2025 is accepted.

Execution petition is closed in full satisfaction.

(J. V. KULKARNI)
XXXV A.C.C.&S.J., Bengaluru.